

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS
STATE OF CALIFORNIA**

**In the Matter of the Motion for Immediate Reversal of
Suspension of:**

TERESA TAYLOR,

**a Permanent Certificated Employee,
Moving Party,**

v.

BURTON SCHOOL DISTRICT,

Responding Party.

OAH No. 2025020384

**ORDER GRANTING MOTION FOR
IMMEDIATE REVERSAL OF SUSPENSION**

(Ed. Code, § 44939, subd. (c)(4))

Administrative Law Judge Michael C. Starkey, State of California, Office of
Administrative Hearings, heard this matter on March 7, 2025, by videoconference.

Attorney Joshua F. Richtel represented moving party Teresa Taylor.

Attorney Juliane S. Rossiter represented responding party Burton School District (District).

Procedural History

On January 13, 2025, the District filed and served a "NOTICE OF INTENT TO DISMISS; PLACEMENT ON UNPAID SUSPENSION PENDING DISCIPLINARY PROCEEDINGS; AND STATEMENT OF CHARGES" (Statement of Charges) against moving party Taylor, alleging multiple causes for dismissal, including immoral conduct, dishonesty, evident unfitness for service, and persistent violation of or refusal to obey the school laws of the state or reasonable regulations prescribed for the government of the public school by the state board or by the governing board of the school district employing her, pursuant to Education Code section 44932, subdivisions (a)(1), (3), (6), and (8). The District placed Taylor on immediate suspension without pay pending hearing, pursuant to Education Code section 44939, based upon the charge of immoral conduct. At hearing, the District argued that it had also alleged willful refusal to perform regular assignments without reasonable cause as a basis for suspension, but this basis was not specified in the Statement of Charges.

On February 12, 2025, Taylor timely filed a motion for immediate reversal of her suspension without pay pursuant to Education Code section 44939, subdivision (c)(4), arguing that the District has not alleged a sufficient basis to place her on immediate unpaid status because the allegations in the statement of charges do not state sufficient facts to constitute immoral conduct. In her motion, Taylor requests an order reversing her suspension without pay.

Discussion

Education Code section 44939, subdivision (b), provides, in relevant part, that a school district may immediately suspend a permanent employee of the school district who has been charged "with immoral conduct, conviction of a felony or of any crime involving moral turpitude, with incompetency due to mental disability, with willful refusal to perform regular assignments without reasonable cause, as prescribed by reasonable rules and regulations of the employing school district, or with violation of Section 51530"

Education Code section 44939, subdivision (c)(1), authorizes the permanent employee to seek review of the order of suspension by motion to the Office of Administrative Hearings. This section limits the review of a motion to immediately reverse a suspension to "a determination as to whether the facts as alleged in the statement of charges, if true, are sufficient to constitute a basis for immediate suspension under this section."

The written submissions of the parties and their oral argument have been considered. Based upon a review of the charges, the District has not alleged facts which, if true, are sufficient to constitute a basis for immediate suspension under Education Code section 44939, subdivision (b), on the grounds of immoral conduct, or on the grounds of willful refusal to perform regular assignments without reasonable cause.

ORDER

Teresa Taylor's motion for immediate reversal of suspension is granted. The Burton School District's immediate suspension of Teresa Taylor is reversed. The District

shall make her whole for any lost wages, benefits, and compensation within 14 days after service of this Order. (Ed. Code, § 44939, subd. (c)(5).)

DATE: 03/11/2025



MICHAEL C. STARKEY

Administrative Law Judge

Office of Administrative Hearings